

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                     |                           |                                                       |                                               |                                            |
|--------------------------------------------------|-------------------------------------|---------------------------|-------------------------------------------------------|-----------------------------------------------|--------------------------------------------|
| Investigator:<br>Olubukola Ajayi                 | Team:<br>Team # 4                   | CCRB Case #:<br>201101753 | <input checked="" type="checkbox"/> Force             | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.              |
|                                                  |                                     |                           | <input checked="" type="checkbox"/> Abuse             | <input checked="" type="checkbox"/> O.L.      | <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Monday, 02/07/2011 3:05 AM   | Location of Incident:<br>§ 87(2)(b) | Precinct:<br>69           | 18 Mo. SOL<br>8/7/2012                                | EO SOL<br>8/7/2012                            |                                            |
| Date/Time CV Reported<br>Mon, 02/07/2011 3:06 AM | CV Reported At:<br>IAB              | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Thu, 02/10/2011 1:36 PM |                                               |                                            |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |
|                    |      |              |
|                    |      |              |
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. POM Hadi Saifi      | 08304  | 939403 | 069 PCT |
| 2. SGT Joseph Lafata   | 04931  | 935150 | 069 PCT |
| 3. An officer          |        |        |         |
| 4. POM Erek Powers     | 08154  | 944907 | 069 PCT |
| 5. POM Ramon Hernandez | 15702  | 936758 | 069 PCT |
| 6. POM Guy Louisjean   | 17441  | 931796 | 069 PCT |
| 7. Officers            |        |        |         |

| Witness Officer(s)         | Shield No | Tax No | Cmd Name |
|----------------------------|-----------|--------|----------|
| 1. POM Timothy Cote        | 26745     | 945619 | 069 PCT  |
| 2. POM Keith Weinberg      | 23038     | 943943 | 069 PCT  |
| 3. POM Harrings Castrillon | 27888     | 936320 | 069 PCT  |
| 4. POM Volkan Uretener     | 28576     | 946351 | 069 PCT  |
| 5. POM Evens Pierrelouis   | 08055     | 934064 | 069 PCT  |
| 6. POF Tanisha Mayfield    | 18328     | 938967 | 069 PCT  |
| 7. POM Landrey Cherenfant  | 30846     | 946454 | 069 PCT  |

| Officer(s)            | Allegation                                                       | Investigator Recommendation |
|-----------------------|------------------------------------------------------------------|-----------------------------|
| A.POM Erek Powers     | Abuse: PO Erek Powers entered § 87(2)(b)                         |                             |
| B.POM Ramon Hernandez | Abuse: PO Ramon Hernandez entered § 87(2)(b)                     |                             |
| C.POM Ramon Hernandez | Force: PO Ramon Hernandez used physical force against § 87(2)(b) |                             |
| D.POM Ramon Hernandez | Force: PO Ramon Hernandez struck § 87(2)(b) with an asp.         |                             |
| E.POM Ramon Hernandez | Discourtesy: PO Ramon Hernandez spoke rudely to § 87(2)(b)       |                             |

| Officer(s)            | Allegation                                                                                                            | Investigator Recommendation |
|-----------------------|-----------------------------------------------------------------------------------------------------------------------|-----------------------------|
| F.POM Ramon Hernandez | Force: PO Ramon Hernandez used physical force against § 87(2)(b)                                                      |                             |
| G. An officer         | Abuse: An officer threatened to use force against § 87(2)(b)                                                          |                             |
| H. An officer         | Abuse: An officer threatened § 87(2)(b) with the use of force.                                                        |                             |
| I.POM Hadi Saifi      | Discourtesy: PO Hadi Saifi spoke rudely to § 87(2)(b)                                                                 |                             |
| J.POM Ramon Hernandez | Discourtesy: PO Ramon Hernandez acted rudely toward § 87(2)(b)                                                        |                             |
| K.POM Ramon Hernandez | Discourtesy: PO Ramon Hernandez spoke rudely to § 87(2)(b)                                                            |                             |
| L.POM Ramon Hernandez | Off. Language: PO Ramon Hernandez made remarks to § 87(2)(b) based upon the sexual orientation of § 87(2)(b)          |                             |
| M. An officer         | Off. Language: An officer made remarks to § 87(2)(b) based upon the sex of § 87(2)(b)                                 |                             |
| N. An officer         | Discourtesy: An officer spoke rudely to § 87(2)(b)                                                                    |                             |
| O.POM Ramon Hernandez | Abuse: PO Ramon Hernandez threatened to use force against § 87(2)(b) and § 87(2)(b)                                   |                             |
| P.POM Erek Powers     | Abuse: PO Erek Powers threatened to use force against § 87(2)(b) and § 87(2)(b)                                       |                             |
| Q.POM Hadi Saifi      | Abuse: PO Hadi Saifi threatened to use force against § 87(2)(b) and § 87(2)(b)                                        |                             |
| R. Officers           | Discourtesy: Officers spoke rudely to individuals.                                                                    |                             |
| S. Officers           | Force: Officers used physical force against individuals.                                                              |                             |
| T.SGT Joseph Lafata   | Abuse: Sgt. Joseph Lafata entered and searched the § 87(2)(b) apartment and § 87(2)(b) floor apartment of § 87(2)(b). |                             |
| § 87(2)(g), § 87(4-b) |                                                                                                                       |                             |

### Case Summary

§ 87(2)(b) called 911 to file the following complaint on February 7, 2011 (encl. 24). The 911 operator connected her to IAB, generating IAB log # 11-05269. This complaint was referred to the CCRB on February 10, 2011 (encl. 25-27).

At about 3:05 a.m. on February 7, 2011, several officers from the 69<sup>th</sup> Precinct responded to § 87(2)(b) in Brooklyn, in response to a 911 call made by § 87(2)(b).

The following allegations occurred as a result of the officers' actions:

- **Allegation A – Abuse of Authority:** PO EreK Powers entered § 87(2)(b).
- **Allegation B – Abuse of Authority:** PO Ramon Hernandez entered § 87(2)(b) § 87(2)(g).
- **Allegation C – Force:** PO Ramon Hernandez used physical force against § 87(2)(b).
- **Allegation D – Force:** PO Ramon Hernandez struck § 87(2)(b) with an asp.
- **Allegation E – Discourtesy:** PO Ramon Hernandez spoke rudely to § 87(2)(b).
- **Allegation F – Force:** PO Ramon Hernandez used physical force against § 87(2)(b) § 87(2)(g).
- **Allegation G – Abuse of Authority:** An officer threatened to use force against § 87(2)(b).
- **Allegation H – Abuse of Authority:** An officer threatened § 87(2)(b) with the use of force. § 87(2)(g).
- **Allegation I – Discourtesy:** PO Hadi Saifi spoke rudely to § 87(2)(b).
- **Allegation J – Discourtesy:** PO Ramon Hernandez acted rudely toward § 87(2)(b) § 87(2)(g).
- **Allegation K – Discourtesy:** PO Ramon Hernandez spoke rudely to § 87(2)(b).
- **Allegation L – Offensive Language:** PO Ramon Hernandez made remarks to § 87(2)(b) based upon the sexual orientation of § 87(2)(b) § 87(2)(g).
- **Allegation M – Offensive Language:** An officer made remarks to § 87(2)(b) based upon the sex of § 87(2)(b).
- **Allegation N – Discourtesy:** An officer spoke rudely to § 87(2)(b) § 87(2)(g).
- **Allegation O – Abuse of Authority:** PO Ramon Hernandez threatened to use force against § 87(2)(b) and § 87(2)(b).
- **Allegation P – Abuse of Authority:** PO EreK Powers threatened to use force against § 87(2)(b) and § 87(2)(b).
- **Allegation Q – Abuse of Authority:** PO Hadi Saifi threatened to use force against

- § 87(2)(b) and § 87(2)(b) § 87(2)(g)
- § 87(2)(b)
- § 87(2)(b)
- **Allegation R – Discourtesy:** Officers spoke rudely to individuals.
  - **Allegation S – Force:** Officers used physical force against individuals. § 87(2)(g)
- § 87(2)(b)
- **Allegation T – Abuse of Authority:** Sgt. Joseph Lafata entered and searched the § 87(2)(b) apartment and § 87(2)(b) floor apartment of § 87(2)(b) § 87(2)(g)
- § 87(2)(g), § 87(4-b)
- § 87(2)(b)

### Results of Investigation

#### Civilian Statements

**Victim:** § 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) black female who is 5'3" tall, weighs 119lbs., and has brown hair and brown eyes. § 87(2)(b) § 87(2)(b) at § 87(2)(b).

#### Medical Records

§ 87(2)(b)'s medical records from § 87(2)(b) (encl. 139-151) indicated that she went to the emergency room on § 87(2)(b), and informed the medical staff that officers punched her on her lips the previous morning. § 87(2)(b) did not complain of any other injuries to the medical staff on this date. On § 87(2)(b), § 87(2)(b) returned to the hospital and complained of injuries to her lip, left hand and left foot, which she sustained when officers kicked her. § 87(2)(b) was examined and diagnosed with having a laceration to her lip and abrasions to her left hand and left foot. She was given Amoxicilin and Clavulanate and was instructed to take Advil.

#### CCRB Testimony

§ 87(2)(b) was interviewed at the CCRB on February 23, 2011 (encl. 37-51). § 87(2)(b) provided phone statements to the CCRB on February 14, 2011, March 28, 2011, April 4, 2011, and April 13, 2011. § 87(2)(g)

On February 7, 2011, at approximately 3:05 a.m., § 87(2)(b) returned from work to her home, located at § 87(2)(b) in Brooklyn. The building is a three-family house. The building's entrance leads into a vestibule. In the vestibule is a stairwell that leads to the § 87(2)(b) floor apartment, where § 87(2)(b)'s sister, § 87(2)(b) lives. The stairwell also leads to the § 87(2)(b) floor apartment, where § 87(2)(b)'s mother, § 87(2)(b) lives. Right next to this stairwell is a door that leads to the § 87(2)(b) where § 87(2)(b) lives. Directly in front of this door is another door that leads to the § 87(2)(b) floor apartment, where § 87(2)(b)'s other sister, § 87(2)(b) lives. Each apartment has a separate door that leads into it, which are sometimes

left unlocked. § 87(2)(b) § 87(2)(b) nephew, § 87(2)(b), was with his friends (whose ages are unknown), § 87(2)(b) and § 87(2)(b) who are not supposed to be in the house. § 87(2)(b) did not indicate nor was she asked what area in the building, she saw § 87(2)(b) § 87(2)(b) and § 87(2)(b) § 87(2)(b) told § 87(2)(b) and § 87(2)(b) to leave but they refused and § 87(2)(b) § 87(2)(b) kicked the door that led to the § 87(2)(b). § 87(2)(b) called 911 and reported that “two children” were in her house who were not supposed to be there. She then went upstairs while holding a broom to scare § 87(2)(b) § 87(2)(b) § 87(2)(b) went to the § 87(2)(b) floor apartment to search for him and saw through the glass balcony doors that an RMP had arrived. § 87(2)(b) and § 87(2)(b) went downstairs to meet the officers.

§ 87(2)(b) opened the door and stepped outside while still holding the broom. § 87(2)(b) stood in the doorway of the building. Two officers stood outside of the gate to the building. § 87(2)(b) described one officer as a 6’ tall white male with brown hair, a muscular build and who was in his 40s. Although she identified him as PO Cote, the investigation determined him to be PO Ramon Hernandez of the 69<sup>th</sup> Precinct. § 87(2)(b) described the other officer, who was identified through the investigation as PO Erek Powers of the 69<sup>th</sup> Precinct, as a 5’5” tall black male officer with dark hair who was slim and younger than PO Hernandez. PO Hernandez told § 87(2)(b) to put the broom down, but she did not comply. § 87(2)(b) told him that she did not want to speak to him anymore because his tone of voice was aggressive. She did not strike any of the officers with the broom. She reentered her house and as she closed the door PO Hernandez pushed against the door. § 87(2)(b) dropped the broom to push back against the door with both hands and PO Hernandez punched § 87(2)(b) on the lip through the opening in the doorway. This caused a cut to the internal part of § 87(2)(b)’s upper and bottom lips. It also caused her lip to bleed and her to fall to the floor onto her back. PO Hernandez entered the hallway. § 87(2)(b) did not know where PO Powers was.

§ 87(2)(b) laid on top of § 87(2)(b) and told the officers that they were going to kill § 87(2)(b). § 87(2)(b) did not know how § 87(2)(b) came to be on top of her. During a phone interview on February 14, 2011, § 87(2)(b) said she saw PO Hernandez take out his baton from her peripheral view and believes he struck her on her left foot with the baton because she does not know how else she could have sustained a cut to her left big toe. However, during her in-person interview with the CCRB, § 87(2)(b) said that PO Hernandez struck her less than five times on her left foot with his baton, causing a cut on her left big toe. § 87(2)(b) ended up on her stomach with her hands underneath her body and PO Hernandez and PO Powers “yanked” at her arms to place her in handcuffs. She sustained a sprain to her left thumb from this. § 87(2)(b) felt § 87(2)(b) pulling on her left arm and gave her arms to the officers. Either PO Hernandez or an officer she identified by name as PO Hadi Saifi of the 69<sup>th</sup> Precinct placed her in handcuffs and took her out of the building, where she saw several other officers. § 87(2)(b) described PO Saifi, who arrived a few minutes after PO Hernandez and PO Powers, as a 5’5” tall Asian male in his 40s with dark colored hair and a medium build. § 87(2)(b) did not bite or kick any officer. § 87(2)(b) and § 87(2)(b) § 87(2)(b) brother § 87(2)(b) witnessed § 87(2)(b)’s arrest and § 87(2)(b) called 911 to report what happened.

§ 87(2)(b) was placed in PO Saifi’s RMP. PO Saifi and his partner, who was identified by the investigation as PO Keith Weinberg of the 69<sup>th</sup> Precinct and described as a Hispanic male with a medium build and shorter than 6’ tall, entered the RMP. While in the RMP, PO Saifi told § 87(2)(b) “Shut the hell up,” and that she was acting like a “bitch.” § 87(2)(b) pressed her face against the window of the RMP to try to get PO Hernandez’s name and PO Hernandez gave her the middle finger. § 87(2)(b) recorded the officers with a video camera from the § 87(2)(b) floor balcony as officers who § 87(2)(b) could not identify called unknown civilians, who were watching the incident from the sidewalk, “bitches” and “stomped” on them. § 87(2)(b) also

recorded officers who § 87(2)(b) could not identify threatening to beat up § 87(2)(b) if they saw him in the street.

PO Saifi and PO Weinberg transported § 87(2)(b) to the 69<sup>th</sup> Precinct stationhouse, where she was charged § 87(2)(a) 160.50. EMS personnel responded to the stationhouse and gave § 87(2)(b) saline water to rinse her mouth because of the cut she sustained to the internal part of her lips when PO Hernandez punched her. § 87(2)(b) did not indicated nor was she asked why EMS was called to the scene. § 87(2)(b) was released from Brooklyn Central Booking later that evening. She took pictures of her injuries that day and provided them to the CCRB. When § 87(2)(b) got home from Brooklyn Central Booking in the evening of February 7, 2011, she saw that § 87(2)(b)'s entire face was swollen. She did not see § 87(2)(b) physically interact with any officers at the scene but assumed that her injury was caused by the officers. § 87(2)(b) told her that officers searched § 87(2)(b)'s apartment and § 87(2)(b)'s apartment. § 87(2)(b) saw her children's toys, which had been in three uncovered bins in her apartment, laying all over the apartment. This confirmed to her that her apartment was searched. On § 87(2)(b) § 87(2)(b) went to § 87(2)(b) and received antibiotics for the injury to her lip and scheduled an x-ray for her left thumb. On § 87(2)(b) she returned to § 87(2)(b) and received 875 MG of Amoxicilin and 125 MG of Clavulanate.

**Victim:** § 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) black female who is 5'8" tall, weighs 135lbs., and has black hair and brown eyes. § 87(2)(b) is employed § 87(2)(b)

**Medical Records**

§ 87(2)(b) provided her discharge papers from § 87(2)(b) to the CCRB (encl. 135-138). The document indicated that she went to the emergency room on § 87(2)(b). She was examined and diagnosed with having a facial contusion to her forehead and having a head trauma without a concussion.

**CCRB Testimony**

§ 87(2)(b) was interviewed at the CCRB on February 23, 2011 (encl. 28-36). She provided phone statements to the CCRB on April 4, 2011, and May 27, 2011.

§ 87(2)(g) When § 87(2)(b) and § 87(2)(b) saw officers outside, they went downstairs and opened the door; § 87(2)(b) stood on the porch while § 87(2)(b) stood behind her in the doorway. § 87(2)(b) was not sure if § 87(2)(b) was still holding the broom. Two officers sat in an RMP in front of their house. She described one of the officers, who was identified through the investigation as PO Ramon Hernandez, as a 6' tall white male with brownish blond hair who had a medium build and was in his late 30s or early 40s. She described the other officer, who was identified through investigation as PO Ereka Powers, as a 5'8" tall black male with a medium build who was in his 30s. § 87(2)(b) stated that there may have been another officer, PO3, on the scene at this point but she was not sure. § 87(2)(b) did not get a good look at PO3 and could only describe him as a 5'8" tall male; PO3 remains unidentified.

The officers exited the RMP and asked § 87(2)(b) and § 87(2)(b) who called for the police. § 87(2)(b) told the officers to forget about the call and told § 87(2)(b) to close the front door. PO Hernandez asked what the problem was and § 87(2)(b) who was angry, told PO Hernandez that he was too aggressive. § 87(2)(b) walked into the house and, as she closed the front door, PO Hernandez rushed into the house followed by PO Powers and PO3. PO Hernandez

punched § 87(2)(b) in the mouth about three times, causing her mouth to bleed and her to fall to the floor on her back. One of these three officers, § 87(2)(b) could not recall who, pushed § 87(2)(b) PO Powers placed his knee on § 87(2)(b)'s chest and handcuffed § 87(2)(b) PO Hernandez kicked and stomped on § 87(2)(b)'s head as PO3 struck § 87(2)(b) on her feet with a nightstick.

When § 87(2)(b) told the officers that they were going to kill § 87(2)(b) PO Hernandez told her to shut the “fuck” up and punched her on the left side of her forehead. § 87(2)(b) fell on top of § 87(2)(b) PO Hernandez kicked the left side of § 87(2)(b)'s neck a couple of times as she lay on top of § 87(2)(b) who was still being assaulted by PO Powers and PO3. § 87(2)(b)'s son, § 87(2)(b) and her other daughter, § 87(2)(b) came to the hallway. § 87(2)(b) asked the officers why they were beating § 87(2)(b) and an officer that § 87(2)(b) did not see told her to stand up and picked her up. PO Hernandez and PO Powers picked § 87(2)(b) up from the floor and § 87(2)(b) told § 87(2)(b) that her tooth was missing. One of the officers, § 87(2)(b) did not recall who, told § 87(2)(b) “Don’t come close or else we are going to arrest you too.” § 87(2)(b) called 911 to report that officers were beating § 87(2)(b) and that § 87(2)(b) needed an ambulance. Either PO Hernandez or PO Powers removed § 87(2)(b) from the house. § 87(2)(b) approached PO Hernandez, PO Powers and PO3 outside of the house and asked them why they had assaulted them. One of the officers said they were defending § 87(2)(b) because they thought § 87(2)(b) was a perpetrator trying to escape. Either PO Hernandez, PO Powers or PO3, § 87(2)(b) could not recall who, told § 87(2)(b) he was going to “fuck” her up if he saw her on the street. § 87(2)(b) said this comment would be in the video recording that her other daughter § 87(2)(b) made from the § 87(2)(b) floor porch of their house. § 87(2)(b) then entered her house and closed the door.

Several minutes later more officers responded to the scene with an ambulance. § 87(2)(b) could not describe these officers or estimate how many there were. § 87(2)(b) was not sure if PO Hernandez, PO Power or PO3 were still at the scene. An officer knocked on the front door of § 87(2)(b)'s house and asked her to open the door or else they would break it down. § 87(2)(b) opened the door and several officers who had just arrived entered the hallway of her house, including an officer she identified by name as Sgt. Joseph Lafata of the 69<sup>th</sup> Precinct and who she described as a white male who was taller than 5’8” tall and wore a white shirt. The officers asked what had happened when the other officers originally responded to her house but she refused to talk to them about it. Sgt. Lafata and several other officers whom she could not describe searched the § 87(2)(b) apartment even after she told them that they could not search it without a warrant. § 87(2)(b) remained in the hallway that was next to the front door to her building while the officers searched the § 87(2)(b). She knows that the § 87(2)(b) was searched because when she went to the § 87(2)(b) after the officers left her house, she found her grandson’s toys all over the place. After the officers were done searching the § 87(2)(b) Sgt. Lafata asked § 87(2)(b) what floor her apartment was on and searched her apartment after she told him. The officers searched the bedroom, prayer room and bathroom on the § 87(2)(b) floor while § 87(2)(b) stood against the wall, a few feet away from the door that leads into her apartment. Sgt. Lafata asked § 87(2)(b) if she wanted medical attention but she said she would go to the hospital on her own. A black female officer, identified through investigation as PO Tanisha Mayfield of the 69<sup>th</sup> Precinct, who was described as being about 5’7” tall and having a medium build, found § 87(2)(b) § 87(2)(b) and § 87(2)(b) hiding behind a chair on the § 87(2)(b) floor. PO Mayfield told Sgt. Lafata that she knew § 87(2)(b) from a prior incident when § 87(2)(b) stole § 87(2)(b)'s car. After the officers left, § 87(2)(b) went to § 87(2)(b) on § 87(2)(b), for dizziness, swelling on the left side of her forehead and neck pain and was given Tylenol. Although § 87(2)(b) stated she took a picture of her injuries, she failed to provide copies to the CCRB. § 87(2)(g)

§ 87(2)(g). On March 11, 2011, § 87(2)(b) was called on her cell phone number and asked to provide her social security number to the CCRB. She said that she did not provide her social security number to the medical staff when she went to the hospital and that she did not recall her social security number off hand. § 87(2)(b) said she would have to call the CCRB back because she was crossing the street, but she did not.

**Complainant/Victim:** § 87(2)(b)

§ 87(2)(b) *is a black female who is 5'4" feet tall.*

**911 Call**

At 3:02 a.m. on February 7, 2011, § 87(2)(b) (encl. 165) reported that she needed police at her house because other police officers were beating her sister, identified by the investigation as § 87(2)(b). § 87(2)(b) could not intervene in the assault because the officers had their guns drawn and she has children. The officers dragged § 87(2)(b) outside and busted up § 87(2)(b)'s teeth. § 87(2)(b) asked for an ambulance to respond.

**CCRB Testimony**

§ 87(2)(b) provided a phone statement to the CCRB on April 4, 2011 (encl. 52). § 87(2)(b) was asleep on the § 87(2)(b) floor when she heard her sister, § 87(2)(b) run down the stairs and open the front door. § 87(2)(b) thought she heard an officer ask § 87(2)(b) who called the police, but she was not sure. § 87(2)(b) asked the officer if he was going to take her statement and told him that if he was not going to take her statement then she did not need him. Then § 87(2)(b) heard the front door being kicked open and § 87(2)(b) screaming, "Get off me." § 87(2)(b) stayed in her apartment because she was scared of the commotion she heard downstairs in the hallway of the building.

At some point, § 87(2)(b) heard her brother § 87(2)(b) exit the § 87(2)(b) floor apartment and ask the officers to get off § 87(2)(b). § 87(2)(b) asked the officers why they were hitting a woman and an officer said, "Come downstairs, pussy, if you want some of this; if not go back upstairs." After that § 87(2)(b) heard a lot of thumping and kicking but not much talking. Several minutes later, § 87(2)(b) parted the curtains to her apartment and saw three officers leading § 87(2)(b) out of the building. She described one of the officers as a 5'7" tall black male with a medium build; he was identified through the investigation as PO Erek Powers. She described the other officer as a white male with a medium build who was bigger and taller than PO Powers; he was identified through the investigation as PO Ramon Hernandez. She described the third officer as a light-skinned male who was not black; he was identified by the investigation as PO Hadi Saifi.

§ 87(2)(b) opened the door to the § 87(2)(b) floor terrace and recorded the officers on her camcorder as they placed § 87(2)(b) in an RMP. One of the officers demonstrated a kicking motion to another officer. PO Hernandez, PO Powers and PO Saifi cursed and threatened to arrest everybody while standing in front of her building. § 87(2)(b) did not indicate nor was she asked what these officers said when they cursed at "everybody." An officer, who she thought was PO Hernandez, saw that the curtain to the § 87(2)(b) floor was parted and said, "Put the fucking camera down. Come downstairs so I can fuck you up." One of the officers, who she believed was PO Powers, held his eye for some reason and told her or a civilian on the § 87(2)(b) floor, who was identified through investigation as § 87(2)(b) "Come the fuck downstairs, bitch; come the fuck downstairs so we can fuck you up."

On April 4, 2011, § 87(2)(b) stated that she would call the CCRB to schedule an interview. A voicemail was left for her on April 5, 2011, and letters were sent to her on April 5, 2011 and April 12, 2011. These letters have not been returned by the United States Postal



Service. § 87(2)(b) was called on April 12, 2011, and she stated she was too busy to cooperate with the investigation but asked the undersigned investigator to call back after 4:00 p.m. when she was out of work. Two voicemails were left for § 87(2)(b) after 4:00 p.m. on April 12, 2011. To date, she has not responded to these attempts to schedule an interview. On May 24, 2012, a search of the Department of Corrections' website for § 87(2)(b) revealed that she is not currently incarcerated.

#### **Attempts to Contact Additional Civilians**

§ 87(2)(b) was called on April 5, 2011, but a voicemail could not be left. She was called on April 12, 2011, and answered the call and asked the CCRB to call her back later. Additional voicemails were left for her on April 12, 2011 and April 19, 2011. Letters were sent to her on April 5, 2011 and April 19, 2011. These letters have not been returned by the United States Postal Service. To date, she has not responded to the CCRB's contact attempts. On May 24, 2012, a search of the Department of Corrections' website for § 87(2)(b) revealed that she is not currently incarcerated.

On April 4, 2011 and April 8, 2011, § 87(2)(b) was called to schedule her § 87(2)(b) son § 87(2)(b) for an interview. § 87(2)(b)

#### **NYPD Statements:**

##### **Subject Officer: PO EREK POWERS**

- *PO Powers is a § 87(2)(b)-old black male who is 5'8" tall, weighs 160 pounds, and has black hair and has brown eyes.*
- *PO Powers was assigned to Sector A of the 69<sup>th</sup> Precinct and to RMP § 87(2)(e), § 87(2)(f) with PO Hernandez. He was dressed in uniform and worked from 11:15 p.m. to 7:50 a.m. on the incident date.*

##### **Memo Book**

On February 7, 2011, at 2:51 a.m., he responded to a family dispute at § 87(2)(b)

§ 87(2)(b)

##### **Pre-Hospital Care Report**

PO Powers told the EMTs that he was restraining a perpetrator when he was kicked in the face by the perpetrator. He complained of a headache and pain to his left eye with reduced vision. PO Powers' left eye was examined and the physical examination revealed that he had a swelling around his left eye and that his left pupil was unreactive and that (encl. 158-159).

##### **Witness' Statement – Injury To Member Of The Department**

On February 7, 2011, PO Powers prepared a LOD witness statement in regards to PO Hernandez's injury. § 87(2)(b)

§ 87(2)(b)

### CCRB Testimony

PO Powers was interviewed at the CCRB on May 25, 2011(encl. 53-60). On February 7, 2011, he and PO Hernandez responded to a radio run for a dispute in progress at § 87(2)(b). When they arrived, § 87(2)(b) was standing in front of the building and holding a broom with a metal pole while § 87(2)(b) stood in the doorway of the building. When PO Powers and PO Hernandez approached § 87(2)(b) she screamed out something that he did not recall. PO Powers did not recall hearing § 87(2)(b) tell them that she no longer needed them. PO Powers determined that § 87(2)(b) was heavily intoxicated due to the smell of alcohol on her breath and his experience with DWI arrests. He did not indicate nor was he asked how close he was to § 87(2)(b) when he determined that she was intoxicated. PO Powers told § 87(2)(b) several times to put the broom down, but she did not comply and swung it at him and PO Hernandez. The broom did not make contact with them. § 87(2)(b) ran into the building and tried to close the front door but PO Powers ran after her and prevented the door from closing by running into it. PO Hernandez was directly behind him. PO Powers was not asked nor did he indicate why he entered § 87(2)(b)'s house. PO Powers was able to open the door because § 87(2)(b) did not close it completely; he did not have to push it open. PO Powers did not punch § 87(2)(b) in the face. He did not recall seeing PO Hernandez punch § 87(2)(b) in the face.

Once PO Powers and PO Hernandez were in the building, § 87(2)(b) swung at them with the broom again. She missed them and PO Powers grabbed the broom away from her. PO Powers had to hold back § 87(2)(b) with his forearm because she attempted to interfere with PO Hernandez by either grabbing his hands, pulling § 87(2)(b) away or laying on top of § 87(2)(b). PO Powers did not recall where his arm made contact with § 87(2)(b). PO Hernandez brought § 87(2)(b) to the ground and placed her on her back, although PO Powers did not know how he did so. § 87(2)(b) bit PO Hernandez's hand when he took her to the ground. Neither PO Powers nor PO Hernandez punched, kicked or stomped on § 87(2)(b)'s head. He did not see PO Hernandez use his nightstick. Neither he nor PO Hernandez told § 87(2)(b) to shut the "fuck" up.

When PO Powers saw PO Hernandez struggling to rear cuff § 87(2)(b) PO Powers attempted to grab her hands but she kicked him in his left eye. PO Powers could not see anymore and made a call for additional units. He did not have any further interaction with any civilians after this. An unknown number of additional officers, who PO Powers could not identify, responded. PO Powers did not know who placed § 87(2)(b) in handcuffs. At some point, § 87(2)(b)'s brother, who was identified through investigation as § 87(2)(b) came downstairs from one of the apartments in the building and screamed at the officers from the steps. PO Powers did not recall what § 87(2)(b) said. He did not threaten § 87(2)(b) with arrest and did not hear PO Hernandez do so. No officers used any discourteous language against any civilians. PO Powers did not notice any injuries to § 87(2)(b).

PO Powers did not know which officers placed § 87(2)(b) in an RMP. PO Powers did not hear any officer threaten any civilians. He did not see any officer give the middle finger to § 87(2)(b) and did not do so himself. He could not recall who transported § 87(2)(b) to the stationhouse. PO Powers and PO Hernandez entered an ambulance, and were transported to the hospital for their injuries.

### Subject Officer: PO RAMON HERNANDEZ

- PO Hernandez is a § 87(2)(b)-old Hispanic male who is 6'3" tall, weighs 255 pounds, and has black hair and brown eyes.
- PO Hernandez was assigned to sector A of the 69th Precinct and to RMP § 87(2)(e), § 87(2)(b) with PO Powers on February 7, 2011. He was the operator of the RMP while PO Powers was the recorder. PO Hernandez was dressed in uniform and worked from 11:15 p.m. to 7:50 a.m. on

the incident date.

### **Memo Book**

At 2:50 a.m. on February 7, 2011, he responded to a family dispute that a sergeant also responded to. At 3:00 a.m. a call for additional units was made for injured officers and at § 87(2)(b) he was transported to § 87(2)(b) (encl. 75-77).

### **Pre-Hospital Care Report**

PO Hernandez informed the EMTs that he was restraining a perpetrator when he was bit by the perpetrator on the right hand. An abrasion to his left shin was discovered upon assessment. He denied any other injury or distress (encl. 160-161).

### **Witness' Statement – Injury To Member Of The Department**

PO Hernandez prepared this witness statement for PO Powers' LOD injury on February 7, 2011. § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

### **PO Hernandez's Hospital Discharge Report**

The medical discharge report (encl. 79) provided by PO Hernandez during his in-person interview revealed that PO Hernandez was treated on § 87(2)(b), for a possible bite on his right hand. He was diagnosed with a contusion on his hand and was prescribed noxicillin and clavulanate.

### **CCRB Testimony**

PO Ramon Hernandez was interviewed at the CCRB on May 27, 2011 (encl. 75-83). On February 7, 2011, PO Hernandez and PO Powers responded to a family dispute and were told over the radio that it was for a son who was destroying his mother's house. When they arrived at the scene, PO Powers got out of the RMP and went to the building as PO Hernandez parked the RMP. After parking, PO Hernandez went to the building and, while walking over a snow bank, heard PO Powers tell § 87(2)(b) who was standing in front of the building holding a broom with a big metal pole at a 45 degree in front of her, to drop the broom twice. § 87(2)(b) did not comply. She did not tell the officers that she no longer needed the police. PO Powers and § 87(2)(b) began struggling with each other; PO Hernandez thought PO Powers tried to pull the broom away from § 87(2)(b) as she kicked and slapped at him, but he is not sure. § 87(2)(b) opened the front door of the house and shouted something at § 87(2)(b) and § 87(2)(b) pushed PO Powers away and ran into the house. PO Powers ran after § 87(2)(b) and PO Hernandez followed them. § 87(2)(b) and § 87(2)(b) tried to close the door but PO Powers squeezed into the building before they could close the door completely.

§ 87(2)(b) and § 87(2)(b) fought with PO Powers by the front door inside of the building and PO Hernandez pushed his way into the building. As PO Powers tried to arrest § 87(2)(b) stood in front of § 87(2)(b) and pushed him away. § 87(2)(b) swung the broom in PO Powers' direction and PO Hernandez reached over PO Powers' and § 87(2)(b)'s heads to grab the broom. PO Hernandez accidentally struck § 87(2)(b) in the face with a closed left fist as he grabbed the broom away from her and she fell to the floor onto her back. PO Powers pushed § 87(2)(b) to the side, although PO Hernandez did not recall where PO Powers touched

her or if § 87(2)(b) stayed away. PO Powers leaned over § 87(2)(b) and § 87(2)(b) kicked him on his left thigh and in his left eye with her bare feet. PO Powers fell to the floor. At this point, PO Hernandez thought that PO Powers was unconscious so, he tried to arrest § 87(2)(b) who kicked upwards at PO Hernandez's face. When § 87(2)(b) did not comply with orders to stop resisting, PO Hernandez removed his asp and struck her feet and ankle about two or three times as she kicked at him. At this point, PO Powers was wrestling with § 87(2)(b) on the floor; PO Hernandez did not know how the struggle between PO Powers and § 87(2)(b) started or what occurred during this struggle. PO Hernandez did not see PO Powers punch or kick § 87(2)(b). PO Hernandez did not have any physical interactions with § 87(2)(b) and did not punch or kick her. PO Hernandez did not tell § 87(2)(b) to shut the "fuck" up. He did not hear PO Powers make this statement.

§ 87(2)(b) got up from the floor and PO Hernandez put his asp away. § 87(2)(b) charged at him and PO Hernandez grabbed her and pushed her against the wall. § 87(2)(b) scratched his face with her left hand and tried to grab his groin area. § 87(2)(b) bit him on his right hand, causing a number of bruises and cuts to his right hand. PO Hernandez then subdued her and held her down on the floor. He was unclear on how he subdued her. PO Powers got away from § 87(2)(b) opened the front door to the house and two officers whose names PO Hernandez did not know entered the hallway. PO Hernandez did not place § 87(2)(b) in handcuffs and thought that these two officers did so. He did not recall if he was present when § 87(2)(b) was handcuffed. PO Hernandez did not see any injuries on § 87(2)(b) or § 87(2)(b). PO Hernandez did not know where § 87(2)(b) was after PO Powers allowed the unknown officers into the building.

As he and PO Powers walked out of the house, PO Hernandez glanced behind him and saw a 6 or 7 foot tall male, identified by investigation as § 87(2)(b) come down the stairs from one of the apartments. He did not recall what, if anything, § 87(2)(b) said when he came downstairs. PO Hernandez only recalled that § 87(2)(b) seemed angry. PO Hernandez and PO Powers did not have any interaction with § 87(2)(b). He did not see any other female civilians at the scene. PO Hernandez saw two RMPs at the scene when he exited the building. PO Hernandez requested that additional officers respond and discovered that blood was gushing from the cut on his hand. Several minutes later, an ambulance and more officers, including supervisors, responded. PO Hernandez and two officers he could not identify carried PO Powers into the ambulance. PO Hernandez and PO Powers remained in the ambulance for the remainder of the incident. He did not return to the house nor did he see § 87(2)(b) again after he and PO Powers exited from the house. He did not see any civilian recording the incident. PO Hernandez did not tell § 87(2)(b) to shut the "fuck" up nor did he hear PO Powers make this comment. PO Hernandez did not refer to § 87(2)(b) or any civilian as a "bitch" and "pussy" nor did he hear any officers refer to any civilians as such. PO Hernandez did not hear any officer use any discourteous language and did not do so himself. After waiting in the ambulance for ten to fifteen minutes, PO Hernandez and PO Powers were taken to the hospital and treated for their injuries.

**Subject Officer: PO HADI SAIFI**

- PO Saifi is a § 87(2)(b)-old Asian male who is 5'7" tall, weighs 180 pounds, and has black hair and brown eyes.
- PO Saifi was assigned to sector E of the 69<sup>th</sup> Precinct and to RMP § 87(2)(e), § 87(2)(f) with PO Weinberg. He was dressed in uniform and worked from 12:00 a.m. to 8:00 a.m. on the incident date.

**Memo Book**

At 2:47 a.m. on February 7, 2011, PO Saifi backed up sector A at § 87(2)(b). At 3:08 a.m. he had a female perpetrator in his RMP and was on his way to the 69<sup>th</sup> Precinct. At 3:12

a.m. he arrived at the stationhouse (encl. 95-98).

### **CCRB Testimony**

PO Hadi Saifi was interviewed at the CCRB on June 3, 2011 (encl. 95-102). On February 7, 2011, PO Saifi and PO Weinberg responded to a radio run regarding a family dispute as backup for sector A. When they arrived at the scene, PO Hernandez was walking fast towards the house. PO Weinberg exited the RMP to aid PO Hernandez and PO Powers while PO Saifi parked the RMP. Twenty to thirty seconds later, PO Saifi exited his RMP and went to the building. PO Weinberg was already inside the building by this time. PO Saifi could not get into the building because PO Weinberg, PO Hernandez, PO Powers and the civilians were inside of the building in front of the door. PO Saifi heard PO Powers scream, “She kicked me in the face. I can’t believe she kicked me in the face,” among other noises from people in the building. PO Saifi gained entry into the building and saw § 87(2)(b) lying on the floor in handcuffs. He did not recall if she was on her back or stomach. He did not see how she was handcuffed or who did so. PO Saifi did not punch, kick or stomp on § 87(2)(b) and he did not observe any other officer do so. PO Saifi never took out his nightstick and did not see any other officer strike a civilian with their nightstick or asp.

PO Powers, who was hurt, could not see and was pacing back and forth. PO Saifi aided him, although he did not specify how. PO Saifi then approached PO Hernandez, who was trying to lift § 87(2)(b) up from the floor. He did not observe any injuries on PO Hernandez. PO Hernandez told PO Saifi that § 87(2)(b) was under arrest and § 87(2)(b) pulled away from PO Hernandez and told him to remove the handcuffs. At the same time, PO Weinberg tried to keep § 87(2)(b) and § 87(2)(b) who were standing on the staircase, from approaching § 87(2)(b). PO Weinberg told § 87(2)(b) and § 87(2)(b) to stay calm and § 87(2)(b) responded, “Fuck y’all. Y’all don’t own this block. I run this block. Leave my sister alone. Get out of my house. I’ll shoot all of y’all if I have to.” PO Weinberg told § 87(2)(b) that if he did not stay back he would be obstructing governmental administration and § 87(2)(b) stopped trying to approach. PO Saifi did not tell § 87(2)(b) to shut the “fuck” up. He did not hear any other officer say this to § 87(2)(b). PO Saifi did not punch § 87(2)(b) and did not observe any other officer do so. PO Saifi did not see § 87(2)(b) on the floor. He did not see any injuries on § 87(2)(b). PO Hernandez picked § 87(2)(b) up from the floor and PO Saifi and PO Weinberg escorted § 87(2)(b) to their RMP. While doing so, PO Saifi noticed that § 87(2)(b)’s bottom lip was busted and that there was blood on her clothing. After § 87(2)(b) was placed in the RMP, PO Saifi did not see PO Weinberg or any other officer give her the middle finger. PO Saifi stayed in front of the apartment building and observed the scene. He was not sure where PO Weinberg was at this point. One of § 87(2)(b)’s sisters came out of the side entrance of the building as PO Saifi stood in front of the building. PO Saifi physically held this female back and told her to relax because he and the other officers were trying to find out what had happened. PO Saifi did not provide the description for this female nor was he asked. § 87(2)(b)’s sister rolled her eyes and told him that he could not hold her back. PO Saifi did not threaten to arrest her. PO Saifi did not see any civilian recording the incident. PO Saifi did not refer to anyone as a “pussy” or “bitch” and never used any profanity. He did not hear any other officer use any discourteous language. PO Saifi was not asked specifically if he told § 87(2)(b) “shut the hell up” nor was he asked if he told § 87(2)(b) that she was acting like a “bitch.”

Sgt. Lafata arrived several minutes later to verify the arrest. Sgt. Lafata asked § 87(2)(b) who was standing on one of the balconies of the building, to open the door to the building but § 87(2)(b) replied, “Get the fuck out of my house. Cops don’t belong here.” PO Saifi did not know if Sgt. Lafata was eventually able to enter into the building. Four or five minutes later, PO Saifi and PO Weinberg transported § 87(2)(b) to the 69<sup>th</sup> Precinct stationhouse. While en route, § 87(2)(b)

§ 87(2)(b) told them to look at what they did to her and said she was going to file a complaint. § 87(2)(b) asked them for the names of all the officers on the scene and PO Saifi provided his information to her and told her that he was going to give her the number to the CCRB when they got to the stationhouse. At the stationhouse, § 87(2)(b) complained about her injuries and PO Saifi called EMS for her. PO Saifi went back out on patrol and did not know if medical attention was provided to § 87(2)(b).

**Witness Officer: PO KEITH WEINBERG**

- PO Weinberg is a § 87(2)(b)-old white male who is 5'7" tall, weighs 138 pounds, and has brown hair and brown eyes.
- PO Weinberg was assigned to sector E of the 69<sup>th</sup> Precinct and to RMP § 87(2)(e), § 87(2)(f) with PO Saifi. He was dressed in uniform and worked from 11:15 p.m. to 7:50 a.m. on the incident date.

**Memo Book**

At 2:47 a.m. on February 7, 2011, PO Weinberg responded to a family dispute at § 87(2)(b) to backup sector A. At 3:08 a.m. he was transporting one female perpetrator to the 69<sup>th</sup> Precinct stationhouse. At 3:12 a.m. the female was taken out of his RMP (encl. 103-106).

**CCRB Testimony**

PO Keith Weinberg was interviewed at the CCRB on June 3, 2011 (encl. 103-110). On February 7, 2011, PO Weinberg and PO Saifi, went to assist sector A officers at § 87(2)(b) in Brooklyn. PO Saifi parked a hundred feet away from the building. PO Weinberg exited the RMP before PO Saifi and saw PO Powers and PO Hernandez were standing in front of someone who was standing either in front of or inside of the building and telling that person to put down a stick. PO Weinberg did not see the stick and did not recall if he saw the person PO Powers and PO Hernandez were talking to. By the time PO Weinberg got to the front of the building, PO Powers and PO Hernandez were already inside the building. PO Weinberg entered the building through the opened front door and saw PO Powers holding his eye. He later learned that PO Powers was kicked in the eye or face. PO Hernandez was trying to put a female, identified by the investigation as § 87(2)(b) in handcuffs. He believed § 87(2)(b) was on the floor at this time. PO Weinberg did not see any injuries on PO Hernandez and did not recall hearing him complaining of any injuries. PO Weinberg did not recall if he observed any injuries on § 87(2)(b). PO Weinberg assisted PO Hernandez in handcuffing § 87(2)(b). He did not recall if § 87(2)(b) resisted arrest. He only recalled that it was hard to get a hold of § 87(2)(b)'s hands. PO Weinberg did not recall why it was hard to get control of her hands. While PO Weinberg and PO Hernandez were placing § 87(2)(b) in handcuffs, an unknown civilian tried to interfere. PO Weinberg could not describe this civilian and did not know who he or she was because the person was not close to him and there were a lot of civilians in the building. PO Weinberg did not know what these other civilians were doing and did not see any officers physically interact with them because he and PO Hernandez were picking § 87(2)(b) up from the floor. PO Weinberg did not see any officer punch, kick or stomp on § 87(2)(b) and he did not engage in any of these actions. PO Weinberg did not threaten to arrest anyone and did not hear any officer do so. He did not recall when PO Saifi entered the building.

At some point, PO Weinberg took § 87(2)(b) out of the building and placed her in his RMP. He did not recall if any officer assisted him or where PO Saifi was when this occurred. PO Weinberg remained with § 87(2)(b) in the RMP for the duration of the incident. PO Weinberg did not recall if any other officer was in the RMP with him and § 87(2)(b). PO Weinberg did not recall seeing any officer give § 87(2)(b) the middle finger. PO Saifi called for additional units and several minutes later more officers responded. Although he recalled that Sgt. Lafata was one

of these officers, he did not recall what Sgt. Lafata did on the scene. PO Weinberg did not recall if any officers attempted to regain entry into the building. PO Weinberg and PO Saifi remained on the scene for approximately three to five minutes before transporting § 87(2)(b) to the stationhouse. PO Weinberg did not recall seeing anyone record the incident. He did not refer to anyone as a “bitch” or “pussy” or use any other discourteous language. PO Weinberg did not hear any other officers use any discourteous language. PO Weinberg did not recall if § 87(2)(b) complained of any injuries. He did not recall if he had any additional interaction with § 87(2)(b) at the stationhouse.

**Witness Officer: PO TIMOTHY COTE**

- PO Cote is a § 87(2)(b)-old white male who is 5'10" tall, weighs 215 pounds, and has brown hair and brown eyes.
- PO Cote was assigned to sergeant operator duties and to RMP § 87(2)(e), § 87(2)(f) with Sgt. Lafata. He was dressed in uniform and worked from 11:15 p.m. on February 6, 2011, to 7:05 a.m. on February 7, 2011.

**Memo Book**

At 3:01 a.m. on February 7, 2011, PO Cote arrived § 87(2)(b) and at 3:05 a.m. he arrested § 87(2)(b). PO Powers suffered an abrasion to his eye and PO Hernandez suffered an laceration to his right hand. The information about the injuries sustained by PO Powers and PO Hernandez during the incident were noted on the fly pages of PO Cote's memo book. At 4:15 a.m., § 87(2)(b)'s property was given to § 87(2)(b). At § 87(2)(b) he requested an ambulance for § 87(2)(b) but she refused treatment at 6:30 a.m. At 9:00 a.m. he vouchered a broom stick (encl. 61-65).

**Complaint Report & Arrest Report**

The Complaint Report (encl. 66-67) and Arrest Report (encl. 68-70) indicated that, while being placed under arrest, § 87(2)(b) struck police officers with a stick. While the officers attempted to restrain her, she bit an officer on the right hand, causing a laceration, and kicked the other officer in the face, causing a laceration to his left eye and temporary loss of vision. Both officers were taken to § 87(2)(b).

**CCRB Testimony**

PO Timothy Cote was interviewed at the CCRB on May 25, 2011 (encl. 61-74). On February 7, 2011, PO Cote and Sgt. Lafata responded to a call for additional officers made by officers assigned to sector A. Upon arrival, PO Cote saw about three to four officers, whose identities he did not recall, doing nothing. PO Hernandez was placing § 87(2)(b) in the back of an RMP. PO Cote exited his vehicle and saw PO Powers bending down and holding his left eye while saying that he could not see. PO Powers or PO Hernandez informed him that § 87(2)(b) had swung a broomstick at them and when they took her to the ground PO Powers was kicked in the eye and PO Hernandez was bitten in the hand. PO Cote did not see any officer give § 87(2)(b) the middle finger while she was in the RMP. PO Hernandez and PO Powers were taken by ambulance to the hospital for treatment. An unknown male, identified by the investigation as § 87(2)(b) stood on a ledge or balcony of the building telling the officers, who were standing in front of the building, in a loud voice to get off his block. § 87(2)(b) also said, “Fuck you guys.” PO Cote did not see anybody recording the incident. He did not hear any officer threaten to arrest any civilians. PO Cote did not call anyone a “bitch” or “pussy” or use any other discourteous language. He did not hear any other officers use such language.

Several minutes later, PO Cote, Sgt. Lafata and several other officers whom he could not recall entered the building to retrieve the broom that § 87(2)(b) had swung at the officers and search for the male that § 87(2)(b) had called 911 for. § 87(2)(b) let the officers into the building. Neither he nor Sgt. Lafata threatened to break down the door if § 87(2)(b) did not open it. PO Cote saw some type of injury to § 87(2)(b)'s head. He did not recall if § 87(2)(b) requested any medical attention. PO Cote, Sgt. Lafata and the other officers searched the hallway and the § 87(2)(b) and § 87(2)(b) floor apartments in the building. They searched the “viewable” areas of the building, although he did not know if they opened any closets. PO Cote did not indicate nor was he asked what he meant by the “viewable” areas of the building. § 87(2)(b) followed the officers to the § 87(2)(b) floor apartment when they searched the building. The broomstick was recovered, although he did not know where it was found. PO Cote did not indicate nor was he asked which officer recovered the broomstick. PO Cote did not physically interact with any civilians.

Although PO Cote assumed the role of arresting officer, he did not transport § 87(2)(b) to the stationhouse and did not know which officers did so. At the stationhouse, § 87(2)(b) requested medical treatment and he called for an ambulance. § 87(2)(b) had a minor cut to the inside of her upper lip. PO Cote did not see how the injury was sustained. § 87(2)(b) later refused medical treatment.

**Subject Officer: SGT. JOSEPH LAFATA**

- Sgt. Lafata is a § 87(2)(b)-old white male who is 6’2” tall, weighs 260 pounds, and has brown hair and brown eyes.
- Sgt. Lafata was assigned to patrol supervisor of the 69<sup>th</sup> Precinct and to RMP § 87(2)(e), § 87(2)(f) with PO Cote. He was dressed in uniform and worked from 11:05 p.m. to 8:02 a.m. on the incident date.

**Memo Book**

On February 7, 2011, at 2:58 a.m., he received a call for additional units at § 87(2)(b). He arrived at 3:01 a.m. and PO Cote made an arrest at 3:05 a.m. § 87(2)(a) 160.50. At 3:20 a.m., he notified Det. Daniel Jairamsingh of IAB regarding the call for additional units. At § 87(2)(b), an ambulance took PO Hernandez, who had a laceration to his right hands and scratches, and PO Powers, who had temporary loss of vision and pain and swelling in his eye, to the hospital and was escorted by sector F. At 3:57 a.m., Sgt. Lafata reported to the stationhouse (encl. 111-113).

**Line of Duty Reports**

Sgt. Lafata prepared LOD reports in regards to PO Powers’ and PO Hernandez’s injuries.

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**CCRB Testimony**

Sgt. Joseph Lafata was interviewed at the CCRB on June 9, 2011(encl. 111-119). On February 7, 2011, Sgt. Lafata responded to a call for additional officers that was made by PO Powers or PO Hernandez. Upon arriving, he saw multiple officers standing in front of the two or three family house located at § 87(2)(b) in Brooklyn. PO Powers and PO Hernandez



were both injured and were standing in front of the building with § 87(2)(b) who was in handcuffs and who was bleeding from the mouth. PO Powers and PO Hernandez told him that § 87(2)(b) hit them with a pipe that was inside of the building. They also told him that § 87(2)(b) kicked PO Powers in the face, causing a laceration to the eye, and that she bit PO Hernandez's hand, causing a laceration that bled. Sgt. Lafata was not told how § 87(2)(b) sustained the injury to her mouth. Sgt. Lafata ordered some officers, who he did not recall, to place § 87(2)(b) in an RMP and transport her to the stationhouse. Sgt. Lafata did not recall what RMP § 87(2)(b) was placed in or if he ever got close to that RMP. He did not see any officer raise his middle finger to § 87(2)(b). Sgt. Lafata did not have any physical interaction with § 87(2)(b) and did not see any force used against any civilians.

Sgt. Lafata requested an ambulance for PO Powers and PO Hernandez. Sgt. Lafata noticed a male, identified by the investigation as § 87(2)(b) and § 87(2)(b)'s mother, identified by the investigation as § 87(2)(b) standing on the balcony of the § 87(2)(b) floor yelling at the officers. § 87(2)(b) cursed at him and the officers, although Sgt. Lafata could not recall exactly what § 87(2)(b) said. § 87(2)(b) acted "erratic" and tried to incite a riot by screaming at the officers. Sgt. Lafata ordered several officers to go to the back of the house to prevent § 87(2)(b) from escaping. Sgt. Lafata decided to enter the building to locate the pipe that was used to hit PO Powers and PO Hernandez and to look for § 87(2)(b). Sgt. Lafata asked § 87(2)(b) and § 87(2)(b) several times to open the door for him but they refused. Sgt. Lafata requested that ESU respond to open the door and told § 87(2)(b) that they were going to enter her house whether she liked it or not and that it was better for her to open the door than for ESU to open the door. § 87(2)(b) opened the door and asked the officers to come into her house. Sgt. Lafata cancelled the request for ESU and he and other officers, who he could not recall, entered the building. § 87(2)(b) told the officers that § 87(2)(b) was not there. Sgt. Lafata and other officers searched the § 87(2)(b) floor apartment to look for § 87(2)(b). Sgt. Lafata did not open any closets or wardrobes. He did not see any other officer do so. They did not find § 87(2)(b). Sgt. Lafata did not search the § 87(2)(b) floor or the § 87(2)(b) apartments. Sgt. Lafata did not know if other officers searched the § 87(2)(b) floor or § 87(2)(b). The pipe was recovered from the hallway of the house by an officer who he could not recall. Sgt. Lafata did not see anyone recording the incident. He did not refer to anyone as a "bitch" or "pussy" and did not use any discourteous language. He did not hear any other officer do so. When he returned to the stationhouse, Sgt. Lafata requested EMS for § 87(2)(b). When EMS arrived, § 87(2)(b) refused medical treatment.

**Subject Officer: PO GUY LOUISJEAN**

- PO Louisjean is a § 87(2)(b)-old black male who is 5'9" tall, weighs 190 pounds, and has black hair and brown eyes.
- PO Louisjean was assigned to sector F of the 69<sup>th</sup> Precinct and to RMP # § 87(2)(b) with PO Pierrelouis. He was dressed in uniform and worked from 11:15 p.m. to 7:50 a.m. on the incident date.

**Memo Book**

He had no memo book entries regarding the incident (encl. 120-122).

**CCRB Testimony**

PO Guy Louisjean was interviewed at the CCRB on June 9, 2011 (encl. 120-125). PO Louisjean and PO Pierrelouis were at the stationhouse when they responded to a call for additional officers. By the time they arrived on the scene, the incident had concluded. PO Louisjean did not recall how many officers were at the scene. He did not recall if any officers told him what had happened. PO Louisjean only recalled that PO Powers and another officer he did

not recall tried to arrest someone. He did not observe anyone being handcuffed or placed in an RMP. PO Louisjean did not observe anyone recording the incident. He did not recall going into the building and did not recall seeing any officers do so. PO Louisjean and PO Pierrelouis were asked to take two injured officers to the hospital. He did not know if any civilians were injured. PO Louisjean did not see or have any verbal or physical interactions with any civilian. He did not use any profanity or threaten to arrest anyone. He did not hear any officers call anyone a “bitch” or “pussy” or use any other discourteous language. After remaining on the scene for about a minute, he and PO Pierrelouis drove the injured officers to the hospital.

**Witness Officer: PO EVENS PIERRELOUIS**

- *PO Pierrelouis is a § 87(2)(b)-old black male who is 5’10” tall, weighs 170 pounds and has black hair and brown eyes.*
- *PO Pierrelouis was assigned to sector F of the 69<sup>th</sup> Precinct and to RMP # § 87(2)(b) with PO Louisjean. He was dressed in uniform and worked from 11:15 p.m. to 7:50 a.m. on the incident date.*

**Memo Book**

At 2:57 a.m. on February 7, 2011, PO Pierrelouis responded to a call for additional units. At § 87(2)(b) he went to § 87(2)(b) in regards to two injured officers from sector A (encl. 126-128).

**CCRB Testimony**

PO Evens Pierrelouis was interviewed at the CCRB on June 9, 2011 (encl. 126-132). PO Pierrelouis and PO Louisjean were at the stationhouse when they heard a call for additional units and responded. Upon arrival, he saw a sergeant and more than ten to fifteen police officers, who he could not identify, from the 63<sup>rd</sup> and 69<sup>th</sup> Precincts standing outside the building. PO Pierrelouis was not informed of what had happened prior to his arrival. PO Pierrelouis did not observe any civilian being placed into an RMP. The officers were asking a male, who was standing on a balcony of the building and was identified by the investigation as § 87(2)(b) to open the front door for them. § 87(2)(b) refused. PO Pierrelouis did not hear any officer threaten to arrest anyone.

Approximately ten to fifteen minutes later, someone in the building opened the door for the officers. PO Pierrelouis and PO Louisjean followed the other officers into the building. When he entered the building, he saw a female, identified by the investigation as § 87(2)(b) standing in the hallway. Other officers spoke to § 87(2)(b) in the living room of the apartment on the § 87(2)(b) floor of the building while he and PO Louisjean stood in the hallway. PO Pierrelouis did not go to any other floors. He did not know if any officer did. He did not search anywhere in the building. Some officers opened the door to a bathroom in the § 87(2)(b) floor apartment and stepped inside. The officers were looking for § 87(2)(b) and asked for him. He did not see any officers open a closet or cupboard. As PO Pierrelouis was looking into the § 87(2)(b) floor apartment, he noticed that some officers found two teenagers hiding behind a table in the living room of the § 87(2)(b) floor apartment. He did not indicate nor was he asked which officers found the two teenagers. PO Pierrelouis did not have any physical interaction with any civilian and did not observe any officer do so. PO Pierrelouis did not call anyone a “bitch” or pussy” and did not use any other discourteous language. He did not hear any other officer do so.

Ten minutes after the officers entered the building, § 87(2)(b) said that she wanted the officers to leave and all of the officers exited the building. He did not observe anyone recording the incident. PO Pierrelouis did not observe any injuries on § 87(2)(b) and she did not complain of any. PO Pierrelouis transported PO Powers and PO Hernandez to the hospital. He did not recall

if another officer accompanied him or if he went with them or met them at the hospital. PO Pierrelouis did not know what injuries PO Powers and PO Hernandez sustained or how they sustained them.

**Witness Officer: PO VOLKAN URETENER**

- PO Uretener is a § 87(2)(b) -old white male who is 5'7" tall, weighs 220 pounds, and has black hair and brown eyes.
- PO Uretener was assigned to sector C of the 69<sup>th</sup> Precinct and to RMP # § 87(2)(e), § 87(2)(f) with PO Castrillon. He was dressed in uniform and worked from 11:15 p.m. to 7:50 a.m. on the incident date.

**Memo Book**

On February 7, 2011, at 2:47 a.m., PO Uretener backed sector A at East 79<sup>th</sup> Street. He resumed patrol at 3:40 a.m. (encl. 84-85).

**CCRB Testimony**

PO Volkan Uretener was interviewed at the CCRB on May 31, 2011 (encl. 84-88). PO Uretener did not recall the incident or what he was doing at the time of the incident. He was shown the photos of § 87(2)(b) and § 87(2)(b) but did not recognize them. PO Uretener did not recall responding to an incident where someone was arrested.

**Witness Officer: PO HARRINGS CASTRILLON**

- PO Castrillon is a § 87(2)(b) -old Hispanic male who is 5'7" tall, weighs 180 pounds, and has black hair and black eyes.
- PO Castrillon was assigned to sector C of the 69<sup>th</sup> Precinct and to RMP # § 87(2)(e), § 87(2)(f) with PO Uretener. He was dressed in uniform and worked from 11:15 p.m. to 7:05 a.m. on the incident date.

**Memo Book**

On February 7, 2011 at 2:02 a.m., he went on meal. At 3:02 a.m. he resumed patrol (encl. 89-91).

**CCRB Testimony**

PO Castrillon was interviewed at the CCRB on May 31, 2011 (encl. 89-94). PO Castrillon denied responding to the incident and said he was at the stationhouse on meal. PO Uretener remained in the RMP and PO Castrillon believed that PO Uretener responded to the incident. PO Castrillon indicated that he and his partner may have split up depending on what he was doing during meal, such as using the bathroom. PO Uretener picked him up from the stationhouse when he resumed patrol. He did not know when PO Uretener picked him up.

**Communication Records**

According to the SPRINT and communications CD (encl. 165-177), a female, identified by the investigation as § 87(2)(b) called 911 at 2:47 a.m. and reported that a male was vandalizing her house at § 87(2)(b) in Brooklyn. § 87(2)(b) said she needed the police to respond before the perpetrator fled.

The Central Dispatcher assigned a job of a family dispute between a mom and son at § 87(2)(b) to officers assigned to sector A of the 69<sup>th</sup> Precinct. The dispatcher advised that

the female caller stated that the male is destroying the house and that there were no weapons or injuries. Sector E of the 69<sup>th</sup> Precinct indicated that they would respond as back up. Sector A arrived and thereafter made an indecipherable call to the dispatcher. The Central Dispatcher asked for additional units to go to § 87(2)(b) as well as a sergeant respond. Sectors C, B, F and a sergeant from the 69<sup>th</sup> Precinct also responded. Officers assigned to sector G and anti-crime, as well as a sergeant, from the 63<sup>rd</sup> Precinct also responded. The officer assigned as the 63<sup>rd</sup> Precinct sergeant indicated that no further units were needed. An officer identifying himself as an anti-crime officer from the 63<sup>rd</sup> Precinct indicated that an officer from sector A of the 69<sup>th</sup> Precinct was kicked in the face and requested an ambulance. The sergeant from the 69<sup>th</sup> Precinct requested that ESU respond to gain entry into a building. Afterwards, the Central Dispatcher notified the 69<sup>th</sup> Precinct sergeant that a female caller stated that police at the location are beating her sister; this caller was identified by the investigation as § 87(2)(b). The 69<sup>th</sup> Precinct sergeant responded, "No, no, the sister has some injuries." The 69<sup>th</sup> Precinct sergeant then reiterated his request for ESU to come to open the door so they could gain entry. Sector E of the 69<sup>th</sup> Precinct then indicated that they had an arrest at that location. The 69<sup>th</sup> Precinct sergeant then cancelled the request for ESU and indicated that he gained entry into the building.

The officers assigned to sector A of the 69<sup>th</sup> Precinct went to § 87(2)(b) in an ambulance; one officer had a hand injury. Officers assigned to sector F of the 69<sup>th</sup> Precinct followed the ambulance to the hospital.

## **NYPD Documents**

### **Command Log**

According to the 69<sup>th</sup> Precinct command log (encl. 192-194), § 87(2)(b) sustained a cut to her mouth at the time of her arrest.

### **Roll Calls**

The 69<sup>th</sup> Precinct roll call indicated that Sgt. Lafata was assigned to patrol supervision and to RMP # § 87(2)(e), § 87(2)(f) with PO Cote. PO Powers and PO Hernandez were assigned to sector A and to RMP # § 87(2)(e), § 87(2)(f). PO Mayfield and PO Landrey Cherenfant were assigned to sector B and to RMP # § 87(2)(e), § 87(2)(f). PO Castrillon and PO Uretener were assigned to sector C and to RMP # § 87(2)(e), § 87(2)(f). PO Saifi and PO Weinberg were assigned to sector E and to RMP # § 87(2)(e), § 87(2)(f). PO Louisjean and PO Pierrelouis were assigned to sector F and to RMP # § 87(2)(e), § 87(2)(f) (encl. 179-184).

The 63<sup>rd</sup> Precinct roll call did not have any officers listed as being assigned to anti-crime duties. But, the roll call indicated that PO Kimberly Feaster and PO Thurman Ransom were assigned to sector GH and to RMP # § 87(2)(e), § 87(2)(f) (encl. 185-191).

### **Daily Vehicle Assignment Sheet**

The daily vehicle assignment sheet for the 63<sup>rd</sup> Precinct revealed that unmarked auto § 87(2)(e), § 87(2)(f) were assigned to anti-crime unit for the first tour (encl. 195).

### **Property Voucher**

This document revealed that a grey broom stick with a blue handle was recovered by PO Cote from the incident location (encl. 196).

## **Other Evidence**

### **Video**

The video recording of the incident was received on April 20, 2012, after all the officer interviews. § 87(2)(g). The recording opens with a pitch black screen and a female who is not on screen, identified by the investigation

as § 87(2)(b) yelling, "I called the fucking cops for help. This is fucking madness. This is madness. This is injustice. I called you for fucking help, that's how scared y'all are?" While § 87(2)(b) repeatedly yells, "That's how scared y'all are," the screen comes into focus (15 seconds into the video). The person recording the footage, § 87(2)(b) is on a balcony on a floor above ground level looking out onto the street. An unidentified officer is holding onto the arm of § 87(2)(b) who is in handcuffs, and is walking her down the sidewalk to the left. They are followed by another unidentified officer who is a few feet behind. It is dark outside and the faces of these two unidentified officers cannot be seen. The two officers leading § 87(2)(b) are determined by the investigation to be PO Hadi Saifi, an Asian male, and PO Keith Weinberg, a white male. One RMP is parked directly in front of the building while another RMP is parked about 20 feet behind it to the left.

As the two officers lead § 87(2)(b) to the left down the sidewalk, a female, who is not displayed on screen, is heard telling someone, (16 seconds ), "I'm on the § 87(2)(b) floor. They beat up my sister. They came to help us and they started beating her up." This female is identified by the investigation as § 87(2)(b) and it is determined that she is on the phone with 911. While § 87(2)(b) speaks with 911, § 87(2)(b) continues yelling (off-screen) and the recorder, § 87(2)(b) pans the camera to the right. In the street in front of the RMP that is directly in front of the house is a dark-skinned officer repeatedly bending down and pacing while holding his face (20 seconds). This officer was identified by the investigation as PO Erek Powers. An unidentified female near the recording device says, "Oh my god, § 87(2)(b) hit one of them in the eye [long pause] so they claim."

While this female speaks and PO Powers continues pacing and bending, the recorder continues panning to the right and a tall light-skinned officer, identified by the investigation as PO Ramon Hernandez, is displayed. PO Hernandez is standing in the street directly in front of the house as an unmarked police sedan with flashing lights drives into view from the right side (23 seconds). There are no other police vehicles at the scene, and until the arrival of the officers in the unmarked vehicle there are only four officers at the scene: PO Powers, PO Hernandez, PO Saifi and PO Weinberg.

PO Hernandez approaches the two unidentified plainclothes officers as they exit their vehicle. One of these officers (PO5) is a light skinned male of average build wearing a hat while the other (PO6) is a light skinned male with a chunky/heavy build who is shaved bald. PO Powers continues pacing and § 87(2)(b) continues yelling. The camera focus pans left again and you hear a male, identified by the investigation as § 87(2)(b) begin to yell (28 seconds). The camera captures § 87(2)(b) who is still being led on the sidewalk by PO Saifi and PO Weinberg, turn towards the building and yell, "§ 87(2)(b) go in the house." An unidentified male off screen says, "That one right up there, too," and § 87(2)(b) continues yelling at the officers. Most of what § 87(2)(b) says is intelligible, except for, "Take your badge off."

The camera pans back to the right and captures PO5 and PO6 looking at the house and speaking to PO Hernandez and PO Powers in the street near the RMP that is directly in front of the building (40 seconds). PO Hernandez points towards the left off screen (ostensibly at § 87(2)(b)) and tells PO6, "This bitch right over here" (43 seconds) before his voice trails off and he points at PO Powers, who is still pacing and holding his eye and saying something about his "fucking" eye. The camera follows PO Powers as he paces towards the right and an unidentified heavyset female officer, who can be identified as a sergeant from the chevrons on her jacket, walks from the right towards the left (48 seconds).

The camera follows the female sergeant walking towards the left and then loses focus and captures no people for several seconds. During this time PO Powers can be heard saying off-screen, "Can't even fucking see right now." § 87(2)(b) is yelling off-screen, "The only thing he said to me was put down my stick and I raised my hand here." The rest of what she yells is

unintelligible. When the camera refocuses (59 seconds) § 87(2)(b) is against the RMP to the left of the building and PO Saifi and PO Weinberg are standing behind her. The female sergeant is walking towards them while PO5, PO6, PO Hernandez and an unidentified officer (PO8) are walking in the street from in between the two marked RMPs to directly in front of the building. § 87(2)(b) who is still off-screen, yells at the officers, “I’ll fuck you up, nigga.” As PO Hernandez walks directly in front of the building, he points at the building to a floor above § 87(2)(b) and responds to § 87(2)(b) “So shut the fuck up and come down the stairs you faggot” (1:01 minute). § 87(2)(b) begins to yell louder, although what he says is unintelligible. PO Hernandez continues yelling at § 87(2)(b) “Come down the fucking stairs, come down the fucking stairs,” as PO6 shines his flashlight at the building.

The camera follows PO Hernandez as he walks to the front of the building, and two other unidentified officers who had not been pictured before are seen standing in between the RMP directly in front of the building and the unmarked vehicle. One of these officers (PO9) is a short, heavyset dark-skinned female and the other (PO10) is a tall light-skinned white or Hispanic male in uniform who appears to be chunky and balding. PO Powers is pacing behind PO9 and PO10 (1:07 minutes). § 87(2)(b) and PO Hernandez keep yelling at each other, and PO Hernandez can be heard saying, “Come down the god damned stairs.” PO10 yells to § 87(2)(b) “Yo stop being a bitch and come the fuck outside” (1:09 minutes). PO Hernandez yells at § 87(2)(b) “Because you’re fucking up there and a coward. Coward. Fucking coward. Coward.” PO10 yells, “Come the fuck outside little bitch,” as § 87(2)(b) yells back at them something unintelligible.

§ 87(2)(b) moves into the house (1:14 minutes) and closes the door to the balcony and the blinds. § 87(2)(b) is heard yelling, “Fucking go in the house” (1:17 minutes) while, through the blinds, the officers continue to stand in front of the building with two of them shining a flashlight at the building. PO10 yells, “Come the fuck outside, come the fuck outside then. Don’t be a bitch inside the window. Don’t be a bitch on the § 87(2)(b) floor. Don’t be a bitch on the § 87(2)(b) floor.” PO10 and PO Hernandez continue telling § 87(2)(b) to come outside. While inside of the house, an unidentified female near the camera asks something unintelligible (1:39 minutes). Another unidentified female near the camera responds, “Why? They hit her first, they hit her first.” The recording ends at 1:45 minutes as § 87(2)(b) and the officers continue yelling at each other. Throughout the recording, no civilians are seen on the street other than § 87(2)(b). No injuries to any officer are visible. No officer, including PO Hernandez, appears to be bleeding (encl. 50-51).

### **Photos**

On April 20, 2012, the undersigned investigator visited § 87(2)(b) in Brooklyn, and took four photographs of the location (encl. 20-23). The first photograph shows that there are § 87(2)(b) floors to the building, and that the apartments on the second and § 87(2)(b) floors have attached balconies. The second photograph is of the opened front door to the building. This photograph also shows that there is a stairwell located several feet away from the front door entrance, and that there is another door located next to the stairwell. The third photograph is an up-close shot of the stairwell and the door that is located right next to it. The fourth photograph shows the back of the front door to the building. This photograph reveals that there is a coat rack located directly behind the front door of the building and with a table right next to it.

On March 2, 2011, § 87(2)(b) e-mailed four photos of the injuries she sustained on February 7, 2011, to the CCRB. § 87(2)(b) informed the CCRB that she took these photos on February 7, 2011. The first and third photos (encl. 43 & 45) show that § 87(2)(b) is bleeding from a cut to the internal part of her upper lip. The second photo (encl. 44) shows that § 87(2)(b) s upper lip is swollen and that she is bleeding from the internal part of her upper lip. The fourth photo (encl. 46) shows that § 87(2)(b) s upper lip is swollen.

- On § 87(2)(b), § 87(2)(b) and § 87(2)(b) filed a Notice of Claim with the City of New York, claiming false arrest, excessive force, violation of civil rights, intentional infliction of emotional distress, and negligence in the hiring and/or retaining of incompetent, unqualified, unfit and assaultive police officers. § 87(2)(b) and § 87(2)(b) are seeking compensatory and punitive damages for the emotional distress and other physical and psychological injuries suffered by the plaintiffs in the hands of the police officers who responded to the scene (encl. 223-230).

| Response                                                          | Percentage |
|-------------------------------------------------------------------|------------|
| U.S. should take action                                           | 68%        |
| U.S. should take action but not at the expense of the economy     | 58%        |
| U.S. should not take action but not at the expense of the economy | 12%        |
| U.S. should not take action                                       | 2%         |

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- This is the first CCRB complaint filed by § 87(2)(b), § 87(2)(b) and § 87(2)(b) (encl. 16-18).
- This is the second complaint filed by § 87(2)(b). § 87(2)(b)

- PO Hernandez and Sgt. Lafata have been members of the service for seven years and have no substantiated CCRB allegations against them (encl. 9-10, and 12-13,).
- PO Saifi has been a member of the service for six years and has no substantiated CCRB allegations against him (encl. 11).
- PO Powers has been a member of the service for four years and has no substantiated CCRB allegations against him (encl. 8).
- PO Louisjean has been a member of the service for nine years and has no substantiated CCRB allegations against him (encl. 14).

## Conclusions and Recommendations

### Officers Not Interviewed

§ 87(2)(g)  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]

### Identification of Subject Officers

The subject officers in this case acknowledged that they responded to the incident and interacted with some, if not all, of the following individuals: § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b). Their presence at the scene was also corroborated by their memo books, SPRINT, other police documents and the video recording of the incident.

§ 87(2)(b) and § 87(2)(b) both indicated that a black male officer, who was one of the first set of officers to respond to the scene, entered their house without their consent. § 87(2)(g)

[REDACTED]  
[REDACTED]  
[REDACTED]

§ 87(2)(b) and § 87(2)(b) both indicated that a white male officer, who was one of the first set of officers to respond to the scene, entered their house without their consent. § 87(2)(b) alleged that this officer punched her in the face, struck her on the leg with an asp and stuck his middle finger at her. § 87(2)(b) alleged that this officer spoke rudely to her, punched her in the head and kicked her in the neck. § 87(2)(b) alleged that this officer threatened her and § 87(2)(b) with force. This officer is identified as PO Hernandez, a Hispanic male, because, because police documents revealed that he was partnered with PO Powers and they were the first set of officers to respond to the scene. Also, PO Hernandez acknowledged striking § 87(2)(b) with his asp.

### Investigative Findings and Recommendations

#### Allegations Not pleaded

§ 87(2)(b) alleged during her call to 911 that officers drew their guns while they were in her house. § 87(2)(g)

§ 87(2)(b) did not make this allegation in her initial phone statement and did not provide an in-person statement to the CCRB.

§ 87(2)(b) alleged, during her phone statement to the CCRB, that PO Powers, PO Hernandez and PO Saifi cursed and threatened to arrest “everybody.” § 87(2)(g)

[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]

§ 87(2)(b) alleged that an officer she could not recall pushed her as they went to arrest § 87(2)(b). § 87(2)(b) did not indicate that she suffered any injuries or fell down from this use





**Allegation D – Force: PO Ramon Hernandez struck § 87(2)(b) with an asp.**

It is undisputed that PO Hernandez struck § 87(2)(b) with an asp.

§ 87(2)(b) testified that prior to being handcuffed, she was lying on her stomach and PO Hernandez struck her less than five times on her left foot with his asp. § 87(2)(b) alleged that a different officer struck § 87(2)(b) with an asp on her feet. § 87(2)(b) stated that § 87(2)(b) was not resisting arrest or fighting with the officers the officer struck her with his asp.

PO Hernandez stated that he hit § 87(2)(b) with his asp to deflect her kicks after she kicked PO Powers in the eye and resisted arrest. PO Powers stated that he did not see PO Hernandez strike § 87(2)(b) with an asp.

According to Police Department v. McNichol (OATH Index no. 78172/02, August 21, 2003), the use of physical force by the police will be found reasonable if warranted by the circumstances (encl. 3c-3g).

§ 87(2)(g)

**Allegation E – Discourtesy: PO Ramon Hernandez spoke rudely to § 87(2)(b)**

**Allegation F – Force: PO Ramon Hernandez used physical force against § 87(2)(b)**

**Allegation I – Discourtesy: PO Hadi Saifi spoke rudely to § 87(2)(b)**

**Allegation J – Discourtesy: PO Ramon Hernandez acted rudely toward § 87(2)(b)**

§ 87(2)(b) alleged that PO Hernandez told her to shut the “fuck” up, punched her in the head and kicked her in the neck. § 87(2)(b) alleged that, while in the RMP, PO Saifi told her that she was acting like a “bitch” and that PO Hernandez gave her the middle finger. PO Hernandez and PO Saifi denied these actions. § 87(2)(g)

§ 87(2)(b)'s discharge report, revealed that she sustained a contusion to her forehead, but the report did not indicate how the injury was sustained. § 87(2)(g)

**Allegation G – An officer threatened to use force against § 87(2)(b)**

§ 87(2)(b) alleged that, while the struggle to arrest § 87(2)(b) was occurring inside of the building, she heard an officer she could not identify tell § 87(2)(b) “Come downstairs pussy, if you want some of this; if not go back upstairs.” § 87(2)(g)

**Allegation H – Abuse of Authority: An officer threatened § 87(2)(b) with the use of force.**

§ 87(2)(b) alleged that either PO Hernandez, PO Powers or an officer she could not describe or identify told her he was going to “fuck” her up if he saw her on the street. § 87(2)(g)

§ 87(2)(g)

**Allegation K – Discourtesy: PO Ramon Hernandez spoke rudely to § 87(2)(b)**

**Allegation L – Offensive Language: PO Ramon Hernandez made remarks to § 87(2)(b) based upon the sexual orientation of § 87(2)(b)**

The short video of the incident records § 87(2)(b) who is off the screen, telling the officers in a loud voice, “I’ll fuck you up, nigga.” PO Hernandez walked directly to the front of the building, points to an apartment that is above the § 87(2)(b) floor apartment of the building, and tells § 87(2)(b) “So shut the fuck up and come downstairs you faggot.” PO Hernandez repeatedly used the word “fuck” as he tried to get § 87(2)(b) to come downstairs. At this point, § 87(2)(b) was already under arrest and there were no officers inside the building.

Patrol Guide Section 203-10 notes that officers are prohibited from using discourteous or disrespectful remarks regarding another person’s ethnicity, race, religion, gender or sexual orientation (encl. 4). According to Patrol Guide Section 203-09, officers are expected to be courteous and respectful at all times (encl. 4a) Although, according to Police Dep’t. v. White (OATH Index no. 78667/03, October 7, 2004), the use of expletives to gain control of a stressful situation does not constitute a misconduct (encl. 4b-4e). In Police Dep’t. v. Haynes, the court found that the Respondent’ officers’ comment regarding the complainant’s sexual orientation was completely unnecessary and served no legitimate law enforcement purpose. (encl. 4f-4g)

§ 87(2)(g)

**Allegation M – Offensive Language: An officer made remarks to § 87(2)(b) based upon the sex of § 87(2)(b)**

**Allegation N – Discourtesy: An officer spoke rudely to § 87(2)(b)**

The short video of the incident records that a tall light-skinned Hispanic or white male officer stood in front of the incident location as he told § 87(2)(b) who was standing on the § 87(2)(b) floor balcony, “Yo stop being a bitch and come the fuck outside,” “Come the fuck outside little bitch,” and “Come the fuck outside. Don’t be a bitch inside the window. Don’t be a bitch on the third floor.” § 87(2)(g)

**Allegation O – Abuse of Authority: PO Ramon Hernandez threatened to use force against § 87(2)(b) and § 87(2)(b)**

**Allegation P – Abuse of Authority: PO Erek Powers threatened to use force against § 87(2)(b) and § 87(2)(b)**

**Allegation Q – Abuse of Authority: PO Hadi Saifi threatened to use force against § 87(2)(b) and § 87(2)(b)**

§ 87(2)(b) alleged that, after § 87(2)(b)’s arrest, PO Hernandez, PO Powers and PO Saifi stood in front of the building yelling at her and § 87(2)(b) to come outside so they could “fuck” them up. § 87(2)(g)

**Allegation R – Discourtesy: Officers spoke rudely to individuals.**

**Allegation S – Force: Officers used physical force against individuals.**

§ 87(2)(b) alleged that after she was placed in the RMP, officers called civilians witnessing the incident “bitches” and “stomped” on them. She could not identify or describe to whom this occurred. Additionally, she could not identify which officers engaged in these allegations. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

**Allegation T – Abuse of Authority: Sgt. Joseph Lafata entered and searched the § 87(2)(b) apartment and § 87(2)(b) floor apartment of § 87(2)(b).**

It is undisputed that Sgt. Lafata entered § 87(2)(b). There are § 87(2)(b) apartments located inside of § 87(2)(b) which includes a § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) floor apartment. The front door of the building opens into a common hallway area. There is a staircase in the common hallway which leads to the § 87(2)(b) and § 87(2)(b) floor apartments. In the hallway there are two separate doors. One door leads into the § 87(2)(b) apartment and the other leads into the first floor apartment. § 87(2)(b) resides in the § 87(2)(b) apartment and § 87(2)(b) resides in the § 87(2)(b) floor apartment. § 87(2)(b) testified that she summoned the police when she found her § 87(2)(b) nephew, § 87(2)(b) and two of his friends inside her home. § 87(2)(b) friends were not supposed to be there. § 87(2)(b) instructed the friends to leave but they refused and § 87(2)(b) § 87(2)(b) kicked the § 87(2)(b) door. § 87(2)(b) called 911 and reported that two children were inside of her home that were not supposed to be there. PO Powers and PO Hernandez responded to her call but, § 87(2)(b) told the officers that she did not want to speak to them. § 87(2)(b) was subsequently arrested. § 87(2)(b) returned home the next day and § 87(2)(b) informed her that officers searched her apartment. § 87(2)(b) observed her children’s toys, which she had previously stored inside of bins, strewn about the apartment.

§ 87(2)(b) testified that PO Powers and PO Hernandez responded to § 87(2)(b) s 911 call. § 87(2)(b) told the officers to forget about the call when they arrived. Officers subsequently arrested § 87(2)(b). After § 87(2)(b) was arrested, an officer knocked on the front door of the building and asked § 87(2)(b) to open the door. The officer told § 87(2)(b) that if she did not open the door they would break it down. § 87(2)(b) opened the front door and several officers, including Sgt. Lafata, entered the hallway. § 87(2)(b) stated that Sgt. Lafata and several other officers then searched § 87(2)(b) s apartment over her protestations that they could not do so without a warrant. § 87(2)(b) then observed Sgt. Lafata search her own apartment. Sgt. Lafata entered and searched § 87(2)(b) s bedroom, prayer room and bathroom. After the officers left, § 87(2)(b) observed her grandson’s toys scattered about the basement.

Sgt. Lafata testified that he entered § 87(2)(b) to find the pipe that § 87(2)(b) used to assault PO Powers and to search for § 87(2)(b). Sgt. Lafata stated that § 87(2)(b) had been trying to incite a riot by yelling and cursing at the officers while standing on the third floor balcony of the home. Sgt. Lafata stated that he asked § 87(2)(b) several times to open the front door to the building but she refused to do so. Sgt. Lafata ordered several officers to go to the rear of the home to prevent § 87(2)(b) from escaping. Sgt. Lafata then requested that ESU respond and open the door. Sgt. Lafata stated that he told § 87(2)(b) that the officers were going to enter her house whether she liked it or not and that it was better for her to open the door than for ESU

to do it. According to Sgt. Lafata, § 87(2)(b) then opened the front door and asked the officers to come inside. Sgt. Lafata stated that he and other officers searched the § 87(2)(b) floor for § 87(2)(b) but were unable to locate him. Sgt. Lafata denied searching the § 87(2)(b). Sgt. Lafata noted that an officer recovered the pipe used in the assault from the hallway.

PO Pierrelouis testified that officers entered the § 87(2)(b) floor apartment in search of § 87(2)(b). PO Pierrelouis heard the officers asking for § 87(2)(b). PO Cote testified that the officers entered the building to retrieve the broomstick used to assault PO Powers and to locate the male that § 87(2)(b) reported to 911. PO Cote stated that § 87(2)(b) consented to the officers entry and that neither he nor Sgt. Lafata threatened to break down the door. PO Cote confirmed that he and Sgt. Lafata searched the hallway, § 87(2)(b) and § 87(2)(b) floor apartment.

The Sprint reports reflects that § 87(2)(b) called 911 and reported that a male was vandalizing her home and that she needed police assistance before the male fled. The Sprint report further reflects that a 69<sup>th</sup> Precinct sergeant requested that ESU respond to § 87(2)(b) to gain entry into the building. The sergeant reiterated his request to the central dispatcher and then canceled the request. Video footage of the incident shows that prior to Sgt. Lafata's arrival no civilians were present in the immediate vicinity of § 87(2)(b).

§ 87(2)(b), § 87(2)(g) § 87(2)(b) Sgt. Lafata admittedly entered and searched the § 87(2)(b) floor apartment. § 87(2)(g)

A warrantless entry into a person's home is presumptively unreasonable. People v. Rodriguez, 77 A.D.3d 280 (App. Div. 2<sup>nd</sup> Dep't) (encl. 4r-4x). Exceptions to the warrant requirement include entries pursuant to consent and those justified by either exigent or emergency circumstances. People v. Fakoya, 25 Misc.3d 1205A (Sup. Ct. Kings. Cty. 2009) (encl. 7a-7f ); People v. McBride, 2010 NY Slip Op 3473 (2010)(encl. 7g-7m); Rodriguez, at 283. Consent must be voluntarily given and cannot be the result of duress or coercion. People v. Fakoya, 25 Misc.3d 1205A (Sup. Ct. Kings. Cty. 2009) (encl. 7a-7f). In determining the voluntariness of a consent, courts must consider whether the consenter was in police custody when consent was given and whether the consenter knew that he or she could refuse to consent. People v. Caldwell, 221 A.D.2d 972 (App. Div. 4<sup>th</sup> Dep't 1995) (encl. 7n-7o). Courts must also consider whether the police employed threats or other coercive techniques and whether the consenter has had previous interactions with law enforcement. Id. Lastly, courts must consider whether prior to giving consent, the consenter exhibited evasive or uncooperative behavior. Id.

Under the exigent circumstances exception to the warrant requirement, if probable to arrest exists, the police may enter a home without a warrant to effectuate such arrest if exigent circumstances justify the warrantless entry. People v. McBride, 2010 NY Slip Op 3473 (2010 . (encl. 7g-7m). Notably, to be guilty of Inciting to Riot a person must urge ten or more persons to engage in tumultuous and violent conduct of a kind likely to create public alarm. N.Y. Penal Law § 240.08 (encl. 7p). Pursuant to the emergency exception, the police must have reasonable grounds to believe there is an emergency at hand and that there is an immediate need for their assistance for the protection of life or property. Rodriguez at 283. The search conducted must not be primarily motivated by an intent to arrest and seize evidence. Id. Lastly, there must be a reasonable basis approximating probable cause, to associate the emergency with the area or place to be searched. Id.

§ 87(2)(g) § 87(2)(b) It is undisputed that § 87(2)(b) was not in police custody when she allowed Sgt. Lafata into her home.



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Team: \_\_\_\_\_

Investigator: \_\_\_\_\_  
Title/Signature                      Print                      Date

Supervisor: \_\_\_\_\_  
Title/Signature                      Print                      Date

Reviewer: \_\_\_\_\_  
Title/Signature                      Print                      Date

Reviewer: \_\_\_\_\_  
Title/Signature                      Print                      Date